

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

May 28, 2026

**Judge Melissa R. McCormick
Dept. CX105**

Department CX105 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5305. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling, and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	Aether v. Sovereign Lending Group, Inc. 2021-01209455	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for approval of a \$125,000 PAGA settlement. The court grants the motion as follows: No enhancement award to plaintiff; \$37,500.00 for attorneys' fees;

		\$12,500.00 for attorneys' costs (see No. 1 below); \$4,947.00 for settlement administration fees; and \$70,053.00 total PAGA penalties (\$52,539.75 to LWDA). 1. Plaintiff's counsel previously sought \$18,399.66 in costs. See 6/5/25 Order (ROA 98, No. 7). In its June 5, 2025 order, the court ordered plaintiff to explain in the supplemental filing why costs totaling almost 15% of the gross settlement amount are reasonable. <i>Id.</i> Plaintiff did not do so. Instead, plaintiff's counsel attempted to justify particular costs (Supp. Moon. Decl. ¶ 7), which did not address the court's inquiry, i.e., why, in the context of the settlement here, is the total amount of costs reasonable? In its September 11, 2025 order (ROA 117, No. 3), the court again inquired regarding the reasonableness of the amount of costs. In the February 18, 2026 second supplemental declaration of counsel (ROA 123), plaintiff's counsel did not squarely address the court's question, and instead asserted that "the relevant consideration is not whether costs totaling a certain percentage of the gross settlement amount are reasonable; it is whether costs—in the context of the PAGA settlement generally—contribute to the remediation of present labor law violations and deterrence of future ones, and/or help maximize enforcement of state labor laws." Second Supp. Moon Decl. (ROA 123) ¶ 3. Plaintiff's counsel has not persuasively explained why the amount of costs sought are reasonable in the context of this settlement. Considering this settlement, the court awards reasonable and necessary litigation costs in the amount of \$12,500.00. The final accounting hearing is scheduled for <u>March 18, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiff shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
2	Alvira v. Pampanga Food Company, Inc., et al. 2025-01484062	<u>Plaintiff Albino Alvira's Motion to Compel Deposition</u> Plaintiff Albino Alvira moves for an order compelling defendant Pampanga Food Company, Inc. to appear for a person most knowledgeable (PMK) deposition. For the following reasons, plaintiff's motion is granted. <i>Background</i> Plaintiff states that on February 6, 2026 he served a notice for a deposition of defendant's PMK. Brief (ROA 159) at 2:21; Hyun Decl. (ROA 163) Ex. A. The notice lists 21 examination topics and 43 categories of documents; the notice set the deposition for